



## CHAPTER xxiv.

An Act to authorise the Great Western Railway Company to raise additional capital and for other purposes. A.D. 1925.  
[28th May 1925.]

**W**HEREAS it is expedient that the Great Western Railway Company (in this Act called "the Company") should be authorised to raise additional capital for the general purposes of their undertaking by the creation and issue of stock and by borrowing and the creation and issue of debenture stock and that the powers in this Act contained should be conferred on the Company with respect to such stock and debenture stock and any shares or stock or debenture stock which the Company are authorised to create by any former Act of Parliament or order or scheme having the force of an Act of Parliament and which have not already been issued :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Short title.  
Great Western Railway Act 1925.



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Incorporation of  
general  
Acts.

2. So far as applicable and as varied by this Act the following parts of Acts are incorporated with and form part of this Act (that is to say):—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters namely—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money;

The conversion of the borrowed money into capital;

The consolidation of shares into stock; and

The provision to be made for affording access to the special Act by all parties interested; and

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863.

Interpretation.

3. In this Act the expressions “order” and “scheme” shall respectively mean any order made under the Light Railways Acts 1896 and 1912 as amended by the Railways Act 1921 and any scheme under the Railways Act 1921 or any other order or scheme having the force of an Act of Parliament.

Power to  
raise additional  
capital.

4. The Company may create and issue stock for such additional capital as they shall think necessary not exceeding five million pounds exclusive of the other capital and other moneys which they are or may be authorised at the date of the passing of this Act to create and issue or raise and the Company may create and issue such stock either wholly or partially as ordinary or wholly or partially as preference stock as they may think fit:

Provided that notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 any such



preference stock may bear such rate of dividend as the directors of the company determine at the time or times of the creation or issue thereof. A.D. 1925.  
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5. Notwithstanding anything contained in the Companies Clauses Act 1863 or in any other Act any preference stock created under the powers of this Act or under the powers of any former Act of Parliament or order or scheme relating to the Company or to any company amalgamated with the Company in respect of capital not already issued shall (if the Company by the resolution or resolutions from time to time sanctioning the creation thereof so determine) be deemed to form part of and shall rank *pari passu* in all respects with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing consolidated preference stock of the Company or any other preference stock of the Company which may be in existence at the date of the creation of such stock. As to preference stock.

6. If the Company after having created any stock under the powers of this Act or any other Act of Parliament or any order or scheme relating to the Company or to any company amalgamated with the Company determine not to issue the whole of the stock created they may cancel the unissued stock and may from time to time thereafter create and issue instead thereof other stock of an aggregate amount not exceeding the aggregate amount of the stock so cancelled and in like manner the Company may create and issue stock in lieu of any stock which may have been issued and redeemed and the provisions of the last preceding section shall extend and apply to such stock. Power to cancel unissued stock.

7. Any stock created by the Company under the powers of this Act and the holders thereof shall unless otherwise provided by the terms of creation or issue thereof be subject and entitled to the same powers provisions forfeitures liabilities rights privileges and incidents as if that stock were part of the then existing stock of the Company of the same class and denomination. Stock subject to same incidents as existing stock.

8. Unless as otherwise expressly provided by the terms of the creation or issue thereof the holders of any preference stock created by the Company under the Restriction as to votes in respect of



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preference  
stock.Power to  
borrow.

powers of this Act shall have the like rights of voting as the holders of the existing consolidated preference stock of the Company.

9. The Company may in respect of the additional capital of five million pounds which they are by this Act authorised to raise borrow on mortgage of their undertaking any sums not exceeding in the whole one million six hundred and sixty-six thousand pounds and of such sum of one million six hundred and sixty-six thousand pounds the Company may borrow from time to time any sum or sums not exceeding in the whole one-third part of the amount of the said additional capital which at the time has been actually issued and accepted but no part thereof shall be borrowed until stock for one-half of the portion of the additional capital in respect of which it is borrowed is fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that stock for the whole of the portion of the said additional capital has been issued and accepted and that one-half of such portion has been fully paid up *bonâ fide* and is held by the persons to whom the same was issued or their executors administrators or assigns Upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Company  
may issue  
debenture  
stock.

10. The Company may subject to the provisions of Part III. of the Companies Clauses Act 1863 create and issue debenture stock of a nominal amount equal to the amount of the moneys which they are by this Act authorised to borrow but notwithstanding anything in those provisions contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all the principal moneys secured by such mortgages.

Mortgages  
already  
granted by

11. All mortgages or bonds granted before the passing of this Act by the Company or by or in the name of any company whose undertaking is under the powers of any Act of Parliament or order or scheme



purchased by the Company or amalgamated with the undertaking of or vested in the Company shall during the continuance of such mortgages or bonds and subject to the provisions of the Acts under which such mortgages or bonds were respectively granted have priority over all mortgages granted after the passing of this Act by the Company. But nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

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Company  
to have  
priority.

12.—(1) If the Company desire to raise any capital by the issue of preference stock or to issue any debenture stock which they are by this Act or by any former Act of Parliament or order or scheme relating to the Company or to any company amalgamated with the Company authorised to create and issue but which has not already been issued they may create and issue such preference stock or debenture stock so as to be redeemable at such times and in such manner and on and subject to such terms and conditions and to bear such rate or rates of dividend or interest ranking for payment *pari passu* with such of the then existing stocks of the Company as the directors of the Company at the time or times of the creation or issue thereof shall determine.

Redeemable  
preference  
and debenture  
stock.

(2) There shall be stated on each certificate of any such redeemable preference or redeemable debenture stock the time at which and the manner in which and the terms and conditions on and subject to which such stock is to be redeemed.

(3) For the purpose of providing money for paying off or redeeming any such redeemable preference or redeemable debenture stock the Company may create and issue other stock either ordinary preference or debenture stock and either redeemable or not or may re-issue any preference or debenture stock originally created and issued in pursuance of the provisions of this Act. Provided that the creation and issue of any particular class of stock in pursuance of the provisions of this section do not make the total amount of that class of stock issued exceed the amount of that class of stock which the Company are for the time being authorised to create and issue except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock and in ascertaining the total amount of each class of stock issued



A.D. 1925. all ordinary and preference stocks shall be deemed to be of one and the same class.

Redemption  
fund.

**13.**—(1) The Company may from time to time set aside out of net revenue and after providing for the payment of interest or dividends on any loans mortgages bonds or debenture stock or rentcharge guaranteed or preference stock of the Company and for other fixed charges and obligations such sums as the Company may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable stock which the Company may have issued in pursuance of the provisions of this Act and which under the conditions of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities (not being except as hereinafter provided securities of the Company) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

(2) All sums so set apart shall be applied to the redemption at maturity of any redeemable stock for the redemption of which they have been set apart or may if the directors of the Company think fit be applied in the purchase of any such stock at a price not exceeding the redemption price and any stock so purchased shall be treated as redeemed.

As to dis-  
posal of  
stock.

**14.** Notwithstanding anything contained in the Companies Clauses Act 1863 in issuing any portion of the stock (including debenture stock) referred to in this Act the Company may dispose of all or any part thereof at such time to such persons on such terms and conditions and in such manner as the directors of the Company think advantageous to the Company.

Application  
of moneys  
raised by  
Company.

**15.** All moneys raised by the Company under this Act whether by stock debenture stock or borrowing shall unless otherwise provided by this Act be applied only to purposes to which capital is properly applicable.

Interest on  
money ad-  
vanced be-  
yond calls.

**16.** Nothing in this Act shall prevent the Company from paying such interest on money advanced beyond the amount of calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845 but



save as aforesaid no interest or dividend shall be paid out of any capital moneys of the Company. A.D. 1925.

17. The provisions of section 71 (Power to strike balances for dividend) of the Great Western Railway (Additional Powers) Act 1924 shall apply to any stock (other than debenture or rentcharge stock) which the Company may create and issue under the powers of this or any future Act relating to the Company. Application of section 71 of Act of 1924.

18. Notwithstanding any law custom or usage to the contrary any form of transfer or power of attorney authorising the transfer of any stock of the Company or any stock in which the Company are interested jointly with any other company and the registers of which are kept by the Company shall be deemed to be sufficiently executed by a party thereto being an individual if duly signed by him and attested by two credible witnesses. Transfers of Company's stock need not be under seal.

19. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

20. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.

21. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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